

25STLC03898 25STLC03898

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-20

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Case Number: 25STLC03898 Hearing Date: July 20, 2026 Dept: 25

HEARING DATE: Mon., July 20, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Livingston

Builders, Inc. v. Rodriguez

COMP FILED: 05-15-25

CASE NUMBER: 25STLC03898

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE); MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE); REQUEST FOR SANCTIONS

MOVING PARTY:

Plaintiff Livingston Builders, Inc.

RESP. PARTY: None

MOTIONS TO COMPEL FURTHER RESPONSES TO INTERROGATORIES AND REQUESTS FOR PRODUCTION OF DOCUMENTS; REQUEST FOR SANCTIONS

(Code Civ. Proc., §§ 2030.300, 2031.310)

TENTATIVE RULING:

The

Court DENIES Livingston Builders, Inc.'s motions to compel further responses to form interrogatories and requests for production of documents.

Livingston
is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of July 15, 2026 ☐ Late ☒

None

REPLY: None

filed as of July 15, 2026 ☐ Late ☒

None

ANALYSIS:

Livingston

Builders, Inc. sued Rodriguez to recover money owed on a contract under which Livingston provided consulting and expert witness services to Rodriguez. Livingston propounded discovery, including form interrogatories and requests for production of documents. Rodriguez responded, but Livingston now moves to compel further responses to several of its requests. The Court DENIES the motion.

Livingston did not provide copies of its discovery requests and Rodriguez's responses with the motion—outside of the separate statement—to demonstrate proof of service and the exact contents of the requests and responses. The Court will not compel a person to respond to something without seeing exactly what that the thing is.

More importantly, Code of Civil Procedure section 94 constrains discovery in limited jurisdiction actions to any combination of 35 interrogatories with no subparts, demands to produce documents, and requests

for admission with no subparts. (Code Civ. Proc., § 94, subd. (a).) Livingston moves to compel further responses to 18 requests for production of documents and 9 form interrogatories. But the form interrogatories contain an additional 16 impermissible subparts, which then totals 43 discovery requests that Livingston seeks to compel further responses.

Because the discovery propounded and sought to be compelled further by Livingston exceeds the amount of discovery permitted in a limited civil case, the Court will not compel further responses from Rodriguez. The Court will not grant a motion to compel further discovery that was propounded in violation of the Code of Civil Procedure.

Livingston is to give notice.